

		Accordingly, the motion is granted. Anthony is ordered to comply with CCP § 387(e) by separately filing the Complaint in Intervention within 10 days and serving a copy of the Court’s Minute Order, as set forth in the statute.
4	Satyam 1050 Orange Drive LLC vs. Sai Ram Investments, LLC 22-01296132	Motion for Leave to Intervene The court’s discretion on a motion for leave to sue is limited to whether the claim against the receiver must be asserted in the receivership proceeding or in a separate lawsuit. The court may not deny a motion for leave to sue on the ground that the claim lacks merit. (Jun v. Myers, supra at 124-125.) Because any recovery against the receiver is paid from the receivership estate and thus affects the final accounting, actions challenging the receiver's conduct during the receivership may be pursued until the receiver’s discharge. (Jun v. Myers, supra at 124.) After discharge the receiver is no longer a proper party to an action on his conduct in his official capacity. Here, the receiver has not been discharged and is therefore a proper party to a suit regarding his conduct during the receivership. The unopposed motion by third party G1 International Staffing, LLC (“Claimant”) for Leave to Sue Receiver or, in the Alternative, to Intervene is GRANTED. Claimant seeks leave to either sue the Receiver in an independent action or to file a complaint in intervention in this action against the Receiver for breach of contract and related claims arising out of the receivership. Claimant has not expressed any reason why a separate action would be preferable to a complaint in intervention,

		and it appears to the Court that the latter would be the most efficacious for all involved. Claimant shall separately file its Complaint in Intervention within 10 days and serve a copy of the Court's Minute Order in compliance with CCP §387(e).
5	Sharma vs. A.A. Construction 22-01274347	Motion to Set Aside/Vacate Default and Judgment The court finds that Plaintiff did not effectuate proper service of the original Complaint on Defendant. However, the First Amended Complaint was properly served on Defendant Jehovany by personal service on January 11, 2024. Defendant admits to receiving the First Amended Complaint and testified that this was the first time that he learned of the pending lawsuit. The court further finds that Defendant Jehovany was diligent in seeking relief after learning of the lawsuit. First, Defendant Jehovany attended the first and only hearing that took place after he was served with the First Amended Complaint. This hearing took place on March 11, 2024. (ROA 118.) Defendant Jehovany also testified that after learning of the First Amended Complaint he sought legal representation and thereafter filed this motion. Again, this motion was filed just one week after default judgment was entered. Given Defendant's diligence in defending the case once he learned of the case, the court finds Defendant's failure to timely file an answer excusable under the circumstances. (Austin v. Los Angeles Unified School Dist. (2016) 244 Cal.App.4th 918, 929 ["Within the context of section 473(b) neglect is excusable if a reasonably prudent person under similar circumstances might have made the same error."].) Given the above and the well-established case law that favors resolution of cases on their merits, the Motion is GRANTED.